

Sunita Devi v State of Uttar Pradesh (2021)

Court: Supreme Court of India | Year: 2021

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION - CIVIL APPEAL NO. 118 OF 2021

SUNITA DEVI ... APPELLANT

VERSUS

STATE OF UTTAR PRADESH AND ORS. ... RESPONDENTS

JUDGMENT AND RATIO DECIDENDI:

1. Civil appeal concerning claim of adverse possession over ancestral agricultural land under the UP Revenue Code 2006.
2. Core legal issue: Essential legal requirements to establish hostile open possession continuously for prescribed statutory period against
3. Key facts: Appellant claimed title over 12 bighas of land alleging continuous un-interrupted cultivation since 1995. High Court rejected a
4. **HELD: Appeal dismissed. Mere long possession without explicit hostile title claim against true owner does not confer title by**